

Texas Abortion
Gets Approval,
In a Rare Case

One of First Court Tests
in Post-Roe Nation

By J. DAVID GOODMAN
HOUSTON — A Texas judge granted a request on Thursday to allow an abortion despite the state’s strict bans, ruling in the case of a pregnant woman whose fetus was diagnosed with a fatal condition.

The case is believed to be among the first attempts in the nation to seek a court-approved abortion since the U.S. Supreme Court overturned Roe v. Wade last year and allowed states to enact their own abortion restrictions.

The judge, Maya Guerra Gamble of Travis County district court, sided with the woman, Kate Cox, who is 20 weeks pregnant, and issued a temporary restraining order to permit her doctor to perform an abortion without facing civil or criminal penalties.

The judge, a Democrat, agreed with Ms. Cox’s lawyers that the procedure was necessary to protect Ms. Cox from a potentially dangerous birth, and to preserve her future fertility.

“The idea that Ms. Cox wants desperately to be pregnant, and this law might actually cause her to lose that ability, is shocking, and would be a genuine miscarriage of justice,” the judge said at the conclusion of a roughly 30-minute video hearing. “So I will be signing the order, and it will be processed and sent out today.”

The ruling applies only to Ms. Cox, though it represents another front in an effort to force Texas, which bans most abortions from conception, to allow abortions under the medical exceptions to its prohibitions. A separate lawsuit, brought by a group of Texas women who say they were denied abortions under the state law, asks the state to clarify the conditions in which medical exceptions would apply.

Since the Supreme Court eliminated the federal right to abortion in 2022, several conservative states have enacted abortion bans that provide for medical exceptions. In those states, women represented by abortion rights groups have sued to clarify when the procedure could be performed, or to have the bans overturned.

Those suits were filed after women were denied abortions. In some cases, the women claimed that they suffered harm to their health as a result, or were forced to leave the state, at significant cost, disruption or risk, to seek abortions elsewhere.

Continued on Page A15



TYLER HICKS/THE NEW YORK TIMES

Ukraine Carries On the Fight

Kyiv still hopes for further U.S. military aid, but it is racing to bolster its own capabilities and looking to other resources. Page A6.

Factory for Weight-Loss Surgery
At a New York Public Hospital

This article is by Jessica Silver-Greenberg, Sarah Kliff and Aimee Ortiz.

In the windowless basement of a Manhattan church last month, Bellevue Hospital hosted a fashion show.

Dozens of weight-loss surgery patients, some in evening gowns, strutted down a red carpet. While their “before” photos were projected on a screen, an M.C. read testimonials about how the operations had remade their lives.

Addressing the cheering crowd, Bellevue’s chief medical officer boasted about a remarkable number. The overwhelmed public hospital, which routinely treats gunshot and stabbing wounds, was on track to perform a record 3,000 weight-loss surgeries this year.

“We have a lot to be proud of,” the executive, Dr. Nathan Link, said.

Bariatric surgery is a major operation that, for the right patients, can ward off heart disease, diabetes and strokes. Bellevue, which serves a disproportionately poor and obese population, says the operations have saved many lives.

But a New York Times investigation found that the bariatric

Rushed Pre-Op Process
for Procedure That
Brings In Funds

program, led by surgeons with financial incentives to perform more operations, has become a high-speed assembly line that has endangered some patients and compromised urgent care for others. And because most of the hospital’s patients are on Medicaid or uninsured, taxpayers foot the bill.

The surgery shrinks patients’ stomachs and requires them to radically change how and what they eat. Even some successful operations can lead to a lifetime of stomach cramps and debilitating acid reflux.

For that reason, hospitals often require surgical candidates to try to lose weight on their own and go through months of screening and preparation for the procedure and its aftermath.

Bellevue, however, frequently cuts corners as it hustles patients through the process, according to the Times investigation, which is

Continued on Page A18

Secrets Recovered on Battlefield
Assist Israel’s Pursuit of Hamas

By ADAM GOLDMAN

TEL AVIV — Since the terrorist attacks on Oct. 7, Israel has recovered a trove of intelligence that its military has used to assess the extent of Hamas’s plans, as well as its battle tactics and abilities, information that Israeli officials say has helped shape the war in Gaza.

At the sites of attacks in Israel and battles in Gaza, the military has found items that detail the location of Hamas installations and tunnels, including how the armed group operates underground, according to documents and other information made available by the Israeli military for The New York Times to review. It also retrieved a laptop that appeared to show that Hamas wanted to seize a number of previously unknown areas on Oct. 7, including a military base south of Tel Aviv.

“This war, we are witnessing something we haven’t seen in previous wars: ground forces, including the armored corps, benefiting from the real-time, precise intelligence information directly transmitted to them,” said Brig. Gen. Hisham Ibrahim, the commander of the armored corps. “Information from intelligence units is

Real-Time Intelligence
Includes Tunnel Sites
and Attack Plans

swiftly transmitted to combat forces.”

The Israeli Army launched a devastating counterattack after Hamas-led assailants killed about 1,200 people and took approximately 240 hostages, according to the Israeli authorities. In an effort to eliminate Hamas, the military has bombarded and invaded the enclave, in a war that has killed more than 15,000 Gazans, according to the health authorities in Gaza.

At a briefing on Monday for journalists at a military base north of Tel Aviv, the Israeli military shared some of the materials collected over the course of the war from dead fighters and areas inside the Gaza Strip, which it says collectively includes maps, pamphlets, transmitters, phones, video cameras, walkie-talkies, notebooks and computers. The information is being analyzed by a

Continued on Page A10

Off Broadway, Vital to Theater Scene, Struggles

By MICHAEL PAULSON

New York’s nonprofit Signature Theater has three modern performance spaces designed by the starchitect Frank Gehry, a long history of cultivating and championing major playwrights like Edward Albee and Lynn Nottage, and a board chaired by the Hollywood star Edward Norton.

What Signature doesn’t have this fall are plays. The company, a mainstay of the Off Broadway scene, closed its most recent production in July and is not set to start its next show until the end of January.

Even as Broadway claws its way back from the coronavirus pandemic, New York’s sprawling network of smaller theaters, many of them noncommercial in both tax status and taste, is struggling.

“This is the hardest season yet,” said Casey York, the president of the Off-Broadway League, citing the combined effects of smaller audiences, shifting philanthropic



SARA KRULWICH/THE NEW YORK TIMES

Dianne Wiest, right, in “Scene Partners” at Vineyard Theater.

patterns, rising wages and costs, and labor shortages at a time when the emergency government assistance that helped many theaters stay afloat through the lengthy pandemic shutdown has largely run out. “There is an incredible squeeze.”

Why does it matter? For decades, Off Broadway theater in New York has provided a home for adventurous work and emerging artists, a place where mounting a show still costs less than buying an apartment and scoring a ticket

Continued on Page A17

“The hardest thing today is finding water to drink”

“If we die, we prefer to die together”

“Death follows wherever we go”

Explosions everywhere”

“All children here are sick. Diarrhea and stomachache”

“I don’t have any more children”

“We sleep fearing we might be dead”

In the Gaza strip, where more than two million people are trapped, death can feel imminent. See what life has been like in the last 60 days. Pages A12-13.

“It’s massacre after massacre”

“We spend days without drinking a single drop of water”

“There is no safe place”

BUSINESS B1-5

Raising the Stakes

A walkout by Tesla mechanics in Sweden has gained support around Scandinavia. Tesla is pushing back. PAGE B1

Finding France’s Sweet Spot

Krispy Kreme’s arrival is the latest move by U.S. fast food into the land of Michelin chefs and leisurely meals. PAGE B1



INTERNATIONAL A4-13

Greece and Turkey as Friends?

The two rivals have been at the brink of military conflict several times in recent decades. A pact signed by the countries’ leaders aims to change that. PAGE A9

Shoring Up U.S.-Mexico Ties

In Mexico City, Treasury Secretary Janet L. Yellen sought to bolster trade while fighting drug trafficking. PAGE A9

OBITUARIES B10-11

Athletic Feats Against the Odds

Isabella de la Houssaye, 59, continued to go on extreme adventures, even after a Stage 4 cancer diagnosis. PAGE B10

NATIONAL A14-22

Playground for the Rich

A report found that New York is gaining millionaires, while lower-income families are being forced out, raising questions about the state’s policies. PAGE A14

House Censures Bowman

Lawmakers voted to formally rebuke Representative Jamaal Bowman over a false fire alarm, the latest partisan use of a congressional action. PAGE A16

‘They Failed Us So Badly’

Two former students are suing Sarah Lawrence College for failing to protect them years ago from a sex cult and its leader, a 50-year-old ex-con. PAGE A22

WEEKEND ARTS C1-14

A Guide to Holiday Events

“The Nutcracker,” skating, menorah lighting and “Big Band” carols: These are some of our favorite things. PAGE C4

The Designs of Women

The Met’s Costume Institute is celebrating well-known designers but also those long, and wrongly, forgotten. PAGE C1



SPORTS B6-9

Yanks Get Soto, and Swagger

In a blockbuster trade with San Diego, they landed a superstar and transformed their outlook for 2024. PAGE B6

Theft of Millions in the N.F.L.

An ex-Jacksonville Jaguars worker is accused of using a credit-card program to steal more than \$22 million. PAGE B8

OPINION A24-25

Frank Bruni

PAGE A25

